CODEX ALIMENTARIUS COMMISSION

Food and Agriculture Organization of the United Nations

World Health Organization

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Agenda item 8

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JOINT FAO/WHO FOOD STANDARDS PROGRAMME

CODEX COMMITTEE ON GENERAL PRINCIPLES

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REVIEW OF THE APPLICATION OF THE CRITERIA AND PROCEDURAL GUIDELINES FOR CODEX COMMITTEES AND AD HOC INTERGOVERNMENTAL TASK FORCES WORKING BY CORRESPONDENCE

(Comments in reply to CL 2025/34-GP)

Submitted by
Chile, Costa Rica, Egypt, European Union, Japan, Kenya, Malaysia, New Zealand, Norway, Republic of Korea, Russian Federation, Saudi Arabia, Thailand, United Arab Emirates, Uruguay, the United States of America (USA) and the International Commission for Uniform Methods of Sugar Analysis (ICUMSA)

Background

1. This document compiles comments received through the Codex Online Commenting System (OCS) in response to CL 2025/34-GP issued in April 2025. Under the OCS, comments are compiled in the following order: general comments are listed first, followed by comments on specific sections.

Explanatory notes on the appendix

2. The comments submitted through the OCS are hereby annexed and presented in a tabulated format.

ANNEX

GENERAL COMMENTS

COMMENT	MEMBER / OBSERVER
Chile agradece la preparación del documento por parte de la secretaria del Codex, y apoya las modificaciones propuestas en el documento CL 2025/34-GP, para los grupos de acción intergubernamentales especiales que trabajan por correspondencia.	**Chile**
Costa Rica agradece la oportunidad de presentar sus observaciones respecto al documento CL 2025/33-GP. En primer lugar, reconoce el riguroso trabajo de la Secretaría del Codex, evidenciado en la elaboración de un texto más claro, estructurado y coherente que refleja las deliberaciones técnicas previas. En este sentido, en términos generales, Costa Rica apoya las modificaciones propuestas en el Apéndice I, las cuales consideramos un avance alineado con los objetivos de eficiencia, actualidad y transparencia que caracterizan al Codex.	**Costa Rica**
Egypt appreciates the clarity and structure provided in the proposed updates and would like to express our support and agreement with the revisions as presented.	**Egypt**
The MSEU support the considerations in point 2 Background of document CX/GP/ 25/34/9 that Working by corrspondence should be applied to sporadic work, not too complex in nature, that would normally have been assigned to committees that have been adjourned sine die. Convening a CWBC would be an exception and should only be considered in specific circumstances or situations. For committees working virtually (as the recent experience with CCMAS44), the main disadvantage in comparison to CWBC is that delegates are in different time zones. It is noted that holding a CWBC is more cost-effective and may be broadly spread out, however CWBC do not necessarily involve a strong participation (e.g. last CCFFP and CCCPL were attended by 39 and 31 Members respectively). The allusion to the preparation of a “normal” agenda is in contradiction with the fact that CWBC should focus on issues as defined by CAC only (see para 3.8). Furthermore, the experiences show, that points that were not intended to be the main agenda items (those for which the Committees were called) turned out to be the most difficult to resolve (e.g. CCFFP36). In case CAC assigns work to be undertaken by a CWBC, the CWBC should only undertake the work identified by CAC and no other items (e.g. matters referred) should be on the agenda. In light of paragraph 3.10 it is unclear and contradictory how a topic can be handled and discussed if it is not on the agenda. The MSEU support the statement about “providing chairpersons with additional tools that would allow virtual discussions with simultaneous presence to address a specific issue could support the efficient conclusion of an item”, as this would allow the chairs to have more resources available to unlock difficult situations.	**European Union**

COMMENT	MEMBER / OBSERVER
Japan would like to express its appreciation for the Codex Secretariat's observations and proposals, which reflect both practical experience and forward-looking considerations, particularly the recognition that the limited use of virtual meetings for specific purposes within CWBCs can contribute to more efficient session management. We believe that this is a pragmatic approach, taking into account the availability of current technologies and the positive experience of CCFFP. In this context, the proposed amendments to allow limited use of virtual meetings represent a realistic and constructive approach to addressing a specific issue. Japan also agrees that establishing a common understanding of the scope of work assigned to CWBCs is key to effective session management within a limited timeframe. From these perspectives, we generally support the intention of the proposed amendments. We note that some elements of the proposed amendments may appear somewhat restrictive or could benefit from further clarification. We therefore suggest that they be reviewed further at CCGP34, taking into account Members' views, to ensure flexible and effective implementation of CWBCs.	**Japan**
Kenya acknowledges the progress made in operationalizing Codex Committees Working by Correspondence (CWBC) and appreciates the review led by the Codex Secretariat. Kenya supports the proposed amendments aimed at enhancing the clarity, efficiency, and practicality of CWBC modalities. Kenya recognizes that while CWBCs are a cost-effective and practical approach for advancing work of limited scope, there remains a critical need to ensure that such processes uphold the core Codex principles of transparency, inclusivity, and scientific rigour. Kenya emphasizes that technological tools, such as virtual sessions with simultaneous presence, should be strategically integrated into CWBCs to support timely consensus-building and deeper technical engagement—particularly for developing countries like Kenya, which often face constraints in in-person participation. At the same time, Kenya supports maintaining a clear scope and mandate for CWBCs as assigned by the Commission, to avoid process creep and ensure that all Members are aligned on the expected outcomes. These revisions will contribute to a more accountable and equitable standard-setting environment.	**Kenya**
Malaysia is of the view that Committees that a CWBC should adhere to the given mandate and guideline for CWBC under the Codex Procedural Manual. CAC43 (2020) approved the proposal that CCFFP be reactivated to work by correspondence to evaluate if the Standard for Canned Sardines and Sardine-Type Products could be amended to include the fish species S. lemuru (Bali Sardinella) in the list of Sardinella species under section 2.1. By definition of working by correspondence, CCFFP is expected to only consider this new work however CCFFP36 had additional agenda item i.e. Matters arising from CAC and subsidiary bodies and Information on activities of FAO and WHO relevant to the work of CCFFP, as well as Other business. While Malaysia understands the situation, we are also of the view that the work assigned by the Commission for CWBC is generally the main factor for member countries to decide whether or not to take part in a CWBC session. Additional agenda item beyond the assigned scope creates confusion between CWBC and committees holding virtual session especially when CCGP is considering flexibility to use virtual tools. Further, there is possibility for in inadvertent non-participation due to misunderstanding of the CWBC scope of work. We seek clarification from the Codex Secretariat whether a CWBC has a similar active status as other active committees. In the 30th Edition PM, both CCCPL and CCFFP are referred as active committee but only CCFFP has remarked (working by correspondence only since 2021). This raises an important question about the difference of status in a Codex Committee that is currently active and one that has been adjourned sine die and later reactivated as a CWBC-active committee. Malaysia is of the view that a CWBC is only active to undertake assigned mandate. It is particularly important since the procedures for elaboration of new standard or review of existing standard differ depending on the committee's status.	**Malaysia**

COMMENT	MEMBER / OBSERVER
NZ's comments on the updates proposed and presented in Appendix I of CX/GP 25/34/9 * NZ would like to thank the Codex Secretariat for the valuable analysis and insights, resulting in a proposal for relatively minor updates to the guidance on CWBC in Appendix I of CX/GP 25/34/9 * We note that CWBC have been in operation for decades and that the Commission adopted that Guidance for inclusion in the Codex Procedural Manual, only in 2021, and that there have been two CWBC subsequently, that we can use as a basis for review. * We note that CWBC with simultaneous virtual presence have only been in operation since the COVID-19 pandemic, and used on an occasional basis. * We strongly support the use of simultaneous virtual presence by CWBC for efficient use of resources, especially for sporadic work and where there may be limited items on the agenda (or where the committees have been adjourned sine die), and where the item is not especially technically complex or controversial thus lends itself to being considered by a CWBC. * We consider the Codex membership will have the opportunity to learn more from its experience of this mode of operation over time and can provide further updates to this guidance accordingly. * We therefore agree that the Chairperson and the Codex Secretariat should consider any proposals for CWBC work items to be discussed on a simultaneous virtual presence on a case by case basis, for use in exceptional cases, where it deemed necessary for efficiency. In summary NZ supports: * the proposed amendments to the guidance on CWBC as contained in Appendix I of CX/GP 25/34/9 to be recommended for adoption by CAC48; and * requesting that CAC provide a clear statement of tasks and timeframe when assigning work by correspondence.	**New Zealand**
General Recommendations for the Manual: Saudi Arabia suggest the following: • Provide practical examples: Include practical examples and illustrative scenarios for applying the guidelines and procedures in various situations. Regarding Committees Working by Correspondence (CWBCs): Saudi Arabia suggest the following: • Additional guidelines for report preparation: Provide further guidance on how to prepare reports for committees working by correspondence in a way that accurately reflects discussions, conclusions, and recommendations, taking into account the asynchronous nature of deliberations.	**Saudi Arabia**
In general, Thailand agrees with the amendment of Section 3.4 Criteria and procedural guidelines for Codex committees and ad hoc intergovernmental task forces working by correspondence (CWBC) to be practical and clearer. However, we would like to propose some specific comments to support the effective operation of CWBC as the following details.	**Thailand**
Support the Proposed amendments to Section 3.4 of the Codex Procedural Manual, Criteria and procedural guidelines for Codex committees and	**United Arab**

COMMENT	MEMBER / OBSERVER
ad hoc intergovernmental task forces working by correspondence.	**Emirates**
The proposed updates are appropriate and should improve the understanding of the work.	**ICUMSA**

SPECIFIC COMMENTS

COMMENT	MEMBER / OBSERVER
Para 56. En el Manual parte en párrafo 58	**Chile**
Para 57. Working by correspondence: Describes a working modality that can be assigned by the Commission for the development of an approved new work to a Codex committee or ad hoc intergovernmental task force, which will **normally** not hold sessions that require the simultaneous presence of participants. A committee can be converted to a CWBC at any time or from a CWBC to a regular committee. Therefore, the word "normally" would not be applicable as this would imply that only a committee already acting as a CWBC and historically meeting in CWBC format would be governed by these rules.	**USA**
Para 59. Malaysia agrees to the insertion of the texts, and it would further benefit to make it clearer who will decide or approve the proposal for such conduct, is it the CWBC registered member and observer? Malaysia supports use of virtual tool during a CWBC sessions for example having a virtual session for finalisation of selected issue or virtual session for adoption of report of the CWBC session. A virtual session in between CBWC sessions when appropriate would enables real-time exchange of views, in-depth discussion and increase transparency as opposed to just written correspondence.	**Malaysia**
Para 59. Session of a CWBC: After the Commission approves the work, assigns it to the committee, and authorizes the committee to work by correspondence, the chairperson of the committee in consultation with the Codex Secretariat will determine dates for registration of Codex Members and Observers to participate in committee deliberations over a defined period of time that will constitute a “session” of the committee. The duration of the session should be of sufficient length to allow for deliberations on agenda items and report adoption**.** During a session of a CWBC, participants engage in formal consultations by correspondence. **However, the Chairperson, in consultation with the Codex Secretariat, may exceptionally propose that** ~~**a specific issue be discussed by simultaneous virtual presence of participants if deemed necessary for the efficient conclusion of the item.**~~***specific issues*** **be discussed by simultaneous virtual presence of participants if deemed necessary for the efficient conclusion of the item.** In paragraph 59, we suggest amending “specific issue” to “specific issues” to allow greater flexibility in cases where there is more than one specific issue that is difficult to reach a conclusion by correspondence, so that simultaneous presence virtual discussions can be used.	**Thailand**
Para 59. Kenya seeks clarification on the meaning of simultaneous presence of participants as mentioned in the guideline, such as “simultaneous presence” in (Para 57) and “simultaneous virtual presence” in (Para 59).	**Kenya**
Para 59. Republic of Korea recommends that given the current lake of clarity regarding the virtual modalities, it may not be appropriate at this stage to include online meeting formats in the definition of ‘session of a CWBC’ ; however, following the discussions in CX/GP 25/34/4, if virtual modalities are added to the guidelines for PWG and EWG, it would be appropriate to include in the CWBC guidelines a statement that, in cases	**Republic of Korea**

COMMENT	MEMBER / OBSERVER
where simultaneous virtual meetings are necessary, virtual modalities of PWG and EWG guidelines will be followed.	
Para 59. Session of a CWBC: After the Commission approves the work, assigns it to the committee, and authorizes the committee to work by correspondence, the chairperson of the committee in consultation with the Codex Secretariat will determine dates for registration of Codex Members and Observers to participate in committee deliberations over a defined period of time that will constitute a "session" of the committee. The duration of the session should be of sufficient length to allow for deliberations on agenda items and report adoption**.** During a session of a CWBC, participants engage in formal consultations by correspondence. **However, the Chairperson, in consultation with the Codex Secretariat and the Host Country Secretariat, may exceptionally propose that a specific issue be discussed by simultaneous virtual presence of participants if deemed necessary for the efficient conclusion of the item.** The Host Country Secretariat has to budget, provide funding and logistics including the provision and payment of simultaneous interpretation services. Chairpersons should check with the Host Country Secretariat prior to committing to any meeting to ensure that the funding and logistics are available.	**USA**
Para 59. Session of a CWBC: After the Commission approves the work, assigns it to the committee, and authorizes the committee to work by correspondence, the chairperson of the committee in consultation with the Codex Secretariat will determine dates for registration of Codex Members and Observers to participate in committee deliberations over a defined period of time that will constitute a "session" of the committee. The duration of the session should be of sufficient length to allow for deliberations on agenda items and report adoption**.** During a session of a CWBC, participants engage in formal consultations by correspondence. **However, the Chairperson, in consultation with the Codex Secretariat, may ~~exceptionally~~ propose that a specific issue be discussed by simultaneous virtual presence of participants if deemed necessary for the efficient conclusion of the item.** The MSEU suggest to delete the word "exceptionally" in para 59.	**European Union**
Para 59. Regarding simultaneous presence; We would like to underline that as there is a need for a quite strict timeframe for discussions in a CWBC (this is not depending on whether it is one week or one month), there would still be a specific time for ending the discussion, and at that time it will be outside working hours somewhere in the world, so – some members might miss the last interventions coming in late – not being simultaneously present is therefore not the most important aspect for CWBC. Furthermore, Regarding virtual means, We would like to add that based on experience gained on using virtual means for committee meetings, it should be an option for the host country and CS to consider convening a committee meeting by virtual tools under similar criteria as for working by correspondence (limited scope and not too complex etc). Consequently we would have preferred a less strict text allowing the use of virtual means as appropriate.	**Norway**
Para 59. Chile está de acuerdo con la propuesta sugerida, nos obstante se tienes los siguientes: observaciones: -Se deberían definir criterios claros que determine en que "casos excepcionales" el presidente propondría la presencia virtual. Por ejemplo, en discusiones de temas técnicos de alta complejidad donde hay diferencias opiniones o solicitud explicita de algunos de los Miembros. -Aclarar o modificar que significa la frase "simultaneous virtual presence", se refiere a ¿reuniones virtuales?, ¿comentarios en el mismo periodo de tiempo en el foro? o ¿ambas?	**Chile**
NEW paragraph: The CWBC would address only the topic assigned by CAC. Malaysia supports underlining CWBC scope of work in new para 62 in which the CWBC would address only the topic assigned by CAC. This links	**Malaysia**

COMMENT	MEMBER / OBSERVER
to working by correspondence definition that cites the scope of work is for development of an approved new work. However, we are concerned with the understanding in para 4.5 that 'It is proposed that this should not prevent the CWBC from discussing potential areas of new work to be proposed to CAC, noting that all decisions regarding new work are taken by CAC' since this understanding contradicts new para 62. With new para 62, our interpretation is that CWBC would not address topic other than assigned by CAC	
NEW paragraph: The CWBC would address only the topic assigned by CAC. In principle, Thailand agrees that the CWBC will only work as assigned by the CAC, in line with other active committees that work through physical meetings. In addition, the CAC has carefully considered that the assigned tasks are appropriate for the correspondence model. However, we observed that there may be confusion and inconsistency between the proposed text in this new paragraph and proposed new paragraph 31 of Section 2, Part 7 in the CX/GP25/34/6 (or paragraph 30 in the 30th edition of Codex Procedural Manual) stipulating that proposals for amendments or new editions of Codex standards and related texts should be submitted to the Commission by the subsidiary body concerned. With this, in situations where a committee that has been adjourned sine die is reactivated as CWBC, it may imply that any proposal for an amendment or a revision cannot be considered prior submit to the CAC for approval as a new work since it would fall outside the scope of the mandate ever assigned by the CAC, as specified in the new paragraph 62. Therefore, we would like to recommend the CCGP to consider and clearify the process of submission of discussion papers and/or project documents to subsidiary bodies for consideration, prior propose to the CAC for approval, in case where the subsidiary body operates in a correspondence format. Also, the CCGP should further amend the both text to be consistency.	**Thailand**
NEW paragraph: The CWBC would address only the ~~topic~~ topic(s) assigned by CAC. The CAC may assign more than one topic to a CWBC adding the (s) provides the flexibility of a single or multiple topics to be assigned by the CAC to a CWBC	**USA**
~~**NEW paragraph: The CWBC would address only the topic assigned by CAC.**~~ The MSEU do not support the new paragraph, that "The CWBC would address only the topic assigned by CAC" because the issue is already covered in para 59. The MSEU request confirmation from the Codex secretariat that this is indeed the case.	**European Union**
NEW paragraph: The CWBC would address only the topic assigned by CAC. Chile está de acuerdo con la propuesta sugerida	**Chile**
Para 65. Thailand has no objection to the addition of the proposed term "official" in this paragraph.	**Thailand**
Para 65. Chile está de acuerdo con la propuesta sugerida, ya que permite a los Miembros y observadores tener claridad desde un inicio de los trabajos, en que idioma se desarrollará el CWBC.	**Chile**
Para 65. Footnote. [xix] See Section 3.1: Guidelines to host governments of Codex committees, **coordinating committees** and ad hoc intergovernmental task forces Thailand agrees with the addition of the proposed term "coordinating committees" in this paragraph, as it helps to improve clarity.	**Thailand**
Para 65. Footnote. [xix] See Section 3.~~1~~3: Guidelines to ~~host governments~~ chairpersons of Codex committees, **coordinating committees** and ad	**USA**

COMMENT	MEMBER / OBSERVER
hoc intergovernmental task forces Incorrect reference for the section mentioned din para 73. It should be section 3.3 Guidelines to chairpersons of Codex committees, coordinating committees, and ad hoc intergovernmental task forces.	
Para 70. It is the responsibility of **the host government** to ensure adequate funding for translation of working documents and the reports. 'the host' or 'the host country'	**Republic of Korea**
Para 72. The absence of a quorum shall be reported to the Commission for further ~~guidance~~guidance and shall be recorded in the report for transparency. The MSEU would suggest the following wording: "The absence of a quorum shall be reported to the Commission for further guidance and shall be recorded in the report for transparency." The MSEU request the Codex secretariat to explain the rule of the quorum and how it is checked before meetings as well as the steps taken by the Codex secretariat in the absence of a quorum. Furthermore, the PM should include requirements regarding the respect of the quorum in meeting reports.	**European Union**
Para 73. The guidelines to chairpersons of Codex committees, **coordinating committees** and ad hoc intergovernmental task forces[xxii] apply *mutatis mutandis* to chairpersons of CWBCs. Malaysia agrees to the correction of the title of Section 3.1 into 3.1 Guidelines to host governments of Codex committees, coordinating committees and ad hoc intergovernmental task forces, as editorial amendment that were inadvertently deleted in the 28th edition proposed under Agenda Item 4.1, consistent with the proposal for CCGP34 in Agenda Item 4.1.	**Malaysia**
Para 73. Thailand agrees with the addition of the proposed term "coordinating committees" in this paragraph, as it helps to improve clarity.	**Thailand**
Para 73. Chile está de acuerdo con la propuesta sugerida, ya que permite que quede explicita la posibilidad para los comités coordinadores.	**Chile**
Para 56, a) All communications are open to all ~~participating~~ registered Members and Observers of the CWBC and are carried out in an open and transparent manner and in accordance with any guidelines or protocols that may be established by the Commission. To align with para 63 of this document that indicates the necessity of delegates to register for a CWBC.	**USA**
Para 56, d) The reports of the CWBC clearly document where there are~~: i.~~ significant points of difference either in relation to the content of the work or with respect to the advancement of a standard through the step process. Thailand agrees with the correction of the typographical error.	**Thailand**
Para 74. The chairperson(s) of CWBCs may be supported by one or more **assistants or** co-chairpersons. Thailand agrees with the addition of the proposed term "assistants or" in this paragraph, as it would enable the Chair to work more efficiently.	**Thailand**
Para 74. The chairperson(s) of CWBCs may be supported by one or more **assistants ~~or~~and/or** co-chairpersons.	**Japan**

COMMENT	MEMBER / OBSERVER
To make sure to have both assistants and co-chairpersons.	
Para 74. The chairperson(s) of CWBCs may be supported by one or more **assistants or** co-chairpersons. Russia seeks clarification who are these assistants?	**Russian Federation**
Para 74. Chile está de acuerdo con la propuesta sugerida, ya que es usada comúnmente, por lo tanto, debe quedar explícito.	**Chile**
Para 76. Chairpersons of CWBCs should make every effort to promote consensus-based decision-making, which may include informal discussions by using virtual technologies, and should also consider implementing measures as described in Section 3: Guidelines to Chairpersons of Codex committees, **coordinating committees** and ad hoc intergovernmental task forces to facilitate consensus building in the elaboration of standards at the committee stage. Malaysia agrees to the correction of the title of Section 3.1 into 3.1 Guidelines to host governments of Codex committees, coordinating committees and ad hoc intergovernmental task forces, as editorial amendment that were inadvertently deleted in the 28th edition proposed under Agenda Item 4.1, consistent with the proposal for CCGP34 in Agenda Item 4.1.	**Malaysia**
Para 76. Thailand agrees with the addition of the proposed term “coordinating committees” in this paragraph, as it helps to improve clarity.	**Thailand**
Para 76. Chairpersons of CWBCs should make every effort to promote consensus-based decision-making, which may include informal discussions by using virtual technologies, and should also consider implementing measures as described in Section 3.3 3: Guidelines to Chairpersons of Codex committees, **coordinating committees** and ad hoc intergovernmental task forces to facilitate consensus building in the elaboration of standards at the committee stage. We believe the correct reference is Section 3.3	**USA**
Para 81. When a CWBC is not able to progress work, the Chairperson, in consultation with the Codex Secretariat, may propose that a specific issue be discussed by simultaneous virtual presence of participants. New para 81bis. When despite discussions with simultaneous virtual presence of participants, a CWBC is not able to progress work, it may recommend alternative working mechanisms to working by correspondence to the Commission, which may include but are not limited to: This addition would further clarify and complement the change proposed in para 59.	**European Union**
Para 81 a) convening a session that requires the simultaneous presence of all participants; B bis Establishing an in session or intra-session Working Group either electronic or virtual To provide the same tools as used in other committee modalities	**USA**
Para 81 a) convening a session that requires the simultaneous presence of all ~~participants~~participants either physical or virtual; To make clear the meeting modalities available to a CWBC	**USA**
Para 85. CWBCs shall report to the Commission. As with reports of physical sessions of Codex committees and ad hoc intergovernmental task forces, reports of CWBCs shall be prepared by the Codex Secretariat in consultation with the chairperson **and the host country secretariat.**	**Malaysia**

COMMENT	MEMBER / OBSERVER
Malaysia agrees to the insertion of the texts.	
Para 85. Thailand has no objection to the addition of the proposed text “and the host country secretariat” in this paragraph.	**Thailand**
Para 87. Members of CWBCs have the right to ask that their positions, including reservations and opposition to a recommendation or decision, be recorded in the report of the **C~~B~~WBC**. Thailand agrees with the correction of the typographical error.	**Thailand**